

HOUSE No. 5488

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, June 9, 2026.

The committee on Ways and Means, to whom was referred the Bill relative to violation of regulation regarding hot work processes (Senate, No. 1646, amended), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5488.

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

1 Chapter 22 of the General Laws is hereby amended by adding the following section:-

2 Section 23. (a) The department of fire services, in cooperation with the division of
3 occupational licensure and local code enforcement officers and state code enforcement officers
4 authorized under chapter 148A, shall collect data on written notices of code violations and fines
5 arising from violations of, or non-compliance with, the hot work provisions of chapter 148 or
6 any hot work rules or regulations issued under chapter 148, including, but not limited to: (i) the
7 failure of an individual to maintain hot work training certification; (ii) performing hot work
8 without hot work training certification; and (iii) failure to comply with hot work permit
9 requirements.

10 (b) The department of fire services shall develop, operate and maintain a database
11 containing the information required to be collected under this section. The database shall: (i) be
12 publicly accessible on the department’s website; and (ii) allow for an automated notification
13 system to alert affected property owners and insurance companies.